Marbury v. Madison

U.S. Supreme Court · 5 U.S. 137 · 1803 · Chief Justice John Marshall (majority)

Source: Oyez Project, oyez.org/cases/1789-1850/5us137; Cornell Legal Information Institute, law.cornell.edu

When Federalist John Adams lost the 1800 election he packed the courts with last-minute appointments. William Marbury was one of those 'midnight judges.' When Jefferson's new Secretary of State, James Madison, refused to deliver Marbury's commission, Marbury sued. Chief Justice Marshall — a Federalist — sided politically with Marbury but ruled the Court could not order delivery, because the law Marbury sued under was itself unconstitutional. In doing so, Marshall established the principle of judicial review.

Connect: The Marshall Court cases (McCulloch, Gibbons) built on the debate from Class 6 over broad vs. strict construction. Which side won at the Court?

Key Passages

It is emphatically the province

> It is emphatically the province and duty of the judicial department to say what the law is. Those who apply the rule to particular cases, must of necessity expound and interpret that rule.

Hierarchy of law

> If two laws conflict with each other, the courts must decide on the operation of each. … If, then, the courts are to regard the constitution, and the constitution is superior to any ordinary act of the legislature, the constitution, and not such ordinary act, must govern the case to which they both apply.

Holding

> A law repugnant to the Constitution is void; and … courts, as well as other departments, are bound by that instrument.

HIPP Analysis

Complete each row using evidence from the passages and your background knowledge.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	
Intended Audience *Who was the source written for?*	
Purpose *What did the author want to accomplish?*	
Point of View *Whose perspective? Whose is missing?*	

Analysis Prompts

1. LEQ Thesis (1 pt): Write a defensible thesis evaluating the political vs. constitutional significance of Marbury v. Madison.

2. Explain how Marshall managed a short-term political loss while securing a long-term institutional win.

3. How did judicial review reshape the balance of powers established in 1787?